

C.C.R.B CASE CLOSING FORM

Investigator assigned: J. Smith		Team: 7	CCRB#: 9801333	☐ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 3/19/98	Time of incident: 7:40 AM	Location of incident: § 87(2)(b)	Pct. of occurrence: 073	Date S.O.L. Expires: 9/19/99
Date reported: 3/19/98	Time reported: 2:40 PM	To whom/where/how reported: Complaint made by phone to 073 Precinct		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): Same as above		Home address:		
Witness(es): § 87(2)(b)		Home address: § 87(2)(b)		
Subject officer(s) (include rank):		Shield:	Tax:	Command:
PO Charles Pearce		28623	904764	073
PO Daniel Franqui		18176	899241	073
PO Raymond Tomins		00822	902480	073
Witness officer(s) (include rank):		Shield:	Tax:	Command:
N/A				
Allegation(s):				Recommendation(s):
A. PO Pearce abused his authority when he damaged doors at Ms. § 87(2)(b) residence in violation of Patrol Guide procedure 116-50.				A. Complainant uncooperative
B. PO Franqui abused his authority when he damaged doors at Ms. § 87(2)(b) residence in violation of Patrol Guide procedure 116-50.				B. Complainant uncooperative
C. PO Tomins abused his authority when he damaged doors at Ms. § 87(2)(b) residence in violation of Patrol Guide procedure 116-50.				C. Complainant uncooperative

Summary

According to Ms. § 87(2)(b) On March 19, 1998, at approximately 7:40 AM, Ms. § 87(2)(b) heard someone banging on the door of her residence, located at § 87(2)(b). Ms. § 87(2)(b) looked out the window and observed a marked RMP and police officers. Ms. § 87(2)(b) then realized that officers had entered her residence. Officers had used a crow bar to gain entry to Ms. § 87(2)(b) residence, damaging her door in the process. Ms. § 87(2)(b) asked who was at her door, and officers responded that they were police officers. Ms. § 87(2)(b) told the officers that she had to get dressed. Ms. § 87(2)(b) then opened the door. The officers entered Ms. § 87(2)(b) residence and harassed her. Ms. § 87(2)(b) was never shown a warrant, and was only told the surname of the subject listed on the warrant. Three doors were damaged at Ms. § 87(2)(b) residence as a result of the incident.